

Amendment No. 2 to HB1974

Johnson
Signature of Sponsor

AMEND Senate Bill No. 2285

House Bill No. 1974*

by adding the following new sections immediately preceding the effective date and renumbering the effective date section accordingly:

SECTION __. Tennessee Code Annotated, Title 49, Chapter 6, Part 26, is amended by adding the following as a new section:

(a) If an order of protection is issued pursuant to title 36, chapter 3, part 6, to protect a student who is enrolled in a participating school in this state from another student who is enrolled in the same participating school, then a student safety plan must be developed and implemented in accordance with this section for the student who is named as the petitioner in the order of protection as soon as possible, but no later than five (5) school days from the date on which the participating school receives a copy of the order of protection.

(b) The student safety plan must be developed by the school principal and, when reasonably practicable and appropriate, the building-level school safety team with input from the parent or legal guardian of the student who is named as the petitioner in the order of protection and must include, at a minimum, the following:

(1) A protocol for providing a copy of the order of protection to school administration, campus security, or a school resource officer;

(2) A plan for the physical separation of the students named in the order of protection to the greatest extent possible, as determined by the school principal, including, but not limited to, removing the student who is named as the respondent in the order of protection from shared classes or school-sponsored

events or activities; scheduling to avoid the students coming into contact with one another during periods of transition during the school day; and designating separate and distinct locations for lunch and other break times to avoid the students coming into contact with one another on school grounds;

(3) A protocol for students to report any contact between the petitioner and respondent to a counselor, principal, or other trusted staff member;

(4) A process for documenting any attempted contact by the student named as the respondent in the order of protection with the student named as the petitioner in the order of protection; and

(5) A protocol for the school principal or other school staff to contact and inform local law enforcement if a violation of the order of protection is suspected.

(c) The parent or legal guardian of the student who is named as the petitioner in the order of protection shall notify the school within forty-eight (48) hours of any changes to the order of protection to allow the school principal and school safety team to revise the student safety plan as necessary.

SECTION __. Tennessee Code Annotated, Title 49, Chapter 6, Part 35, is amended by adding the following as a new section:

(a) If an order of protection is issued pursuant to title 36, chapter 3, part 6, to protect a student who is enrolled in a private school that enrolls recipients from another student who is enrolled in the same private school, then a student safety plan must be developed and implemented in accordance with this section for the student who is named as the petitioner in the order of protection as soon as possible, but no later than five (5) school days from the date on which the private school receives a copy of the order of protection.

(b) The student safety plan must be developed by the school principal and, when reasonably practicable and appropriate, the building-level school safety team with input

from the parent or legal guardian of the student who is named as the petitioner in the order of protection and must include, at a minimum, the following:

(1) A protocol for providing a copy of the order of protection to school administration, campus security, or a school resource officer;

(2) A plan for the physical separation of the students named in the order of protection to the greatest extent possible, as determined by the school principal, including, but not limited to, removing the student who is named as the respondent in the order of protection from shared classes or school-sponsored events or activities; scheduling to avoid the students coming into contact with one another during periods of transition during the school day; and designating separate and distinct locations for lunch and other break times to avoid the students coming into contact with one another on school grounds;

(3) A protocol for students to report any contact between the petitioner and respondent to a counselor, principal, or other trusted staff member;

(4) A process for documenting any attempted contact by the student named as the respondent in the order of protection with the student named as the petitioner in the order of protection; and

(5) A protocol for the school principal or other school staff to contact and inform local law enforcement if a violation of the order of protection is suspected.

(c) The parent or legal guardian of the student who is named as the petitioner in the order of protection shall notify the school within forty-eight (48) hours of any changes to the order of protection to allow the school principal and school safety team to revise the student safety plan as necessary.

SECTION __. Tennessee Code Annotated, Title 49, Chapter 10, Part 14, is amended by adding the following as a new section:

(a) If an order of protection is issued pursuant to title 36, chapter 3, part 6, to protect a student who is enrolled in a participating school in this state from another

student who is enrolled in the same participating school, then a student safety plan must be developed and implemented in accordance with this section for the student who is named as the petitioner in the order of protection as soon as possible, but no later than five (5) school days from the date on which the participating school receives a copy of the order of protection.

(b) The student safety plan must be developed by the school principal and, when reasonably practicable and appropriate, the building-level school safety team with input from the parent or legal guardian of the student who is named as the petitioner in the order of protection and must include, at a minimum, the following:

(1) A protocol for providing a copy of the order of protection to school administration, campus security, or a school resource officer;

(2) A plan for the physical separation of the students named in the order of protection to the greatest extent possible, as determined by the school principal, including, but not limited to, removing the student who is named as the respondent in the order of protection from shared classes or school-sponsored events or activities; scheduling to avoid the students coming into contact with one another during periods of transition during the school day; and designating separate and distinct locations for lunch and other break times to avoid the students coming into contact with one another on school grounds;

(3) A protocol for students to report any contact between the petitioner and respondent to a counselor, principal, or other trusted staff member;

(4) A process for documenting any attempted contact by the student named as the respondent in the order of protection with the student named as the petitioner in the order of protection; and

(5) A protocol for the school principal or other school staff to contact and inform local law enforcement if a violation of the order of protection is suspected.

(c) The parent or legal guardian of the student who is named as the petitioner in the order of protection shall notify the school within forty-eight (48) hours of any changes to the order of protection to allow the school principal and school safety team to revise the student safety plan as necessary.